

EMPLOYEE/MANAGEMENT RELATIONS

1. **REASON FOR ISSUE:** To revise the Department of Veterans Affairs (VA) policy regarding employee/management relations.
2. **SUMMARY OF CONTENTS/MAJOR CHANGES:** This change updates who may serve as a deciding official for formal agency grievances under the provisions of VA Handbook 5021, Part IV. The pages in this issuance replace the corresponding page numbers in VA Handbook 5021. Revised text is contained in [brackets]. These changes will be incorporated into the electronic version of VA Handbook 5021, Employee-Management Relations, maintained on the [Office of the Chief Human Capital Officer SharePoint](#) and the [VA Publications website](#).
3. **RESPONSIBLE OFFICE:** Office of Human Resources and Administration (HRA) (006), Office of the Chief Human Capital Officer (OCHCO) (05), Employee Relations and Performance Management Service (051).
4. **RELATED DIRECTIVE:** VA Directive 5021, Employee/Management Relations.
5. **RESCISSION(S):** Not applicable.

BY DIRECTION OF THE SECRETARY OF VETERANS AFFAIRS:

/s/
Mark R. Engelbaum
Assistant Secretary for
Human Resources and Administration

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resolutions are encouraged at any stage of the grievance process. Management should explore alternative solutions to resolve employee grievances at the earliest stage possible since informal resolutions often avoid unnecessary costs related to lost productivity, poor morale, and diminished services.

- f. **Nonconformity with Procedure.** Every effort will be made by both management and employees to conform to the prescribed grievance policy and procedures. However, minor technical violations, whether made by management or the employee, which do not affect the general equity with which a case is presented or processed, will not preclude proceeding with a grievance, nor invalidate any action or decision taken in connection with the grievance. This provision does not require the acceptance of a grievance that is not filed in accordance with the timelines of this policy unless good cause can be shown for its untimeliness.

2. RESPONSIBILITIES.

- a. **Under Secretaries, Assistant Secretaries, Other Key Officials, Deputy Assistant Secretaries, or equivalent, and field Facility Directors** may delegate authority to appropriate officials to decide grievances. [These delegations must be consistent with the provisions of Chapter 2, paragraph 7 and Chapter 3, paragraph 7 of this part.] Delegations will be made in writing.
- b. **Human Resources (HR) Officials** will provide guidance and technical advice to management and employees regarding the administration of the VA grievance procedure.
- c. **Supervisors and managers** will:
 - (1) Receive employee concerns and attempt to clarify and make reasonable adjustments to address problems that arise in daily relationships with employees prior to becoming subject of a grievance; and
 - (2) Administer the VA grievance procedures and bring the process to the attention of employees, when appropriate.
- d. **Grievance examiners** will conduct an impartial and objective inquiry regarding the merits of a grievance and submit a report of findings and recommendations to the deciding official, employee, and representative, if applicable.

Part IV

Chapter 2

- aa. Disapproval of a suggestion, disapproval of a discretionary award or bonus or incentive, or disagreement with the amount of an award. Awards, bonuses, and incentives include, but are not limited to, incentive pay such as critical skills incentive; cash awards; quality step increases; time-off awards; honor awards; recruitment, retention, and relocation incentives, student loan repayment.
- bb. Adverse actions taken under [38 U.S.C. § 713](#). A return of an SES career appointee to the General Schedule or another pay system during the 1-year period of probation for less than fully successful executive performance.
- cc. Termination of an SES career appointee during probation for unsatisfactory performance.
- dd. Evaluation of performance for a member of the SES.
- ee. Any matter excluded for a member of the SES as outlined in [VA Directive and Handbook 5027, Senior Executive Service](#).

7. OFFICIALS AUTHORIZED TO DECIDE GRIEVANCES.

- a. **Informal Grievance Procedure.** The official who will make a decision on informal grievances will be the immediate supervisor or lowest level official with the authority to resolve the grievance. For example, if an Associate Director requires the reassignment of an employee from one service line under their jurisdiction to another service line in their jurisdiction, the employee will file the informal grievance with the Associate Director versus the first-line supervisor or service chief as those management officials did not order the reassignment. Additionally, if the basis of the grievance is regarding the employee's immediate supervisor, the next higher-level official in the employee's supervisory line will decide the issue. (See exceptions in subparagraph c.)
- b. **Formal Grievance Procedure.** Authority to make a decision on formal grievances will be as follows:
 - (1) [Authority to make a decision on formal grievances will be the first-level SES or, when applicable, a Facility Director, who for the purposes of this part includes but is not limited to Veteran Integrated Service Network (VISN) Directors, Veterans Benefit Administration (VBA) Regional Office Directors, and National Cemetery Administration (NCA) Directors, within the employee's supervisory chain.
 - (2) The authority in paragraph 7.b.(1) can be redelegated via a general delegation of authority and/or on a case-by-case basis to GS-15 supervisors or to a supervisor no less than one level of supervision below the first-level SES or Facility Director. (See exceptions in subparagraph c.)

- (3) Additionally, the Secretary, Under Secretaries, Assistant Secretaries, Other Key Officials, and Deputy Assistant Secretaries, or equivalent, as appropriate, may designate an appropriate official on a case-by-case basis who may decide the formal grievance of an employee.
- (4) A change in deciding official will generally occur prior to acting on the formal grievance under paragraph 12(c). However, a change may occur later when warranted by the circumstances, and such a change will not impact full and fair consideration of the grievance.]

[]

c. **Exceptions.**

- (1) The deciding official designated in paragraphs 7.b.(1) and (2) will not decide the grievance when:
 - (a) The deciding official is the official with whom the employee would file the initial grievance in the informal stage;
 - (b) The deciding official does not have the authority to make a determination on the grievance issue; or
 - (c) The deciding official made the decision, approved the action, or took the action on which the employee's grievance is based.
- (2) In these instances, the deciding official will refer the grievance to the next higher-level official in the supervisory line, and that official will be the deciding official or they may designate another official to make the grievance decision.

8. TIME LIMITS FOR FILING A GRIEVANCE.

- a. **Time Limits.** To ensure timely and orderly processing, the following time limits are established for filing a grievance:

- (1) Informal Procedure.
 - (a) Employees have 15-calendar days from the date of the incident or action on which the grievance is based to initiate a written grievance under the informal procedure.
 - (b) When an employee is informed of an administrative decision that has not yet been effected, the period to file a grievance is counted from the date the employee received written notification of the decision, e.g., date the employee received a written decision regarding cancellation of a telework agreement.
 - (c) An employee must first utilize the informal grievance procedure except in cases in which the employee is grieving a disciplinary action. (See paragraph 5 of this chapter.)
- (2) Formal Procedure.

- cc. Complaints arising from actions taken due to the individual's physical or mental condition, e.g., requirement to undergo a special physical examination to determine fitness for duty, decision of Physical Standards Boards.
- dd. Complaints arising from dissatisfaction with a proficiency report or rating, or a performance plan summary rating or final rating, if applicable.
- ee. Disapproval of a suggestion, disapproval of a discretionary award or bonus or incentive, or disagreement with the amount of an award. Awards, bonuses, and incentives include, but are not limited to, incentive pay such as critical skills incentives; cash awards; step increases as described in [VA Handbook 5017: Employee Recognition and Awards](#), time-off awards; honor awards; recruitment, retention, and relocation pay; student loan repayment.

7. OFFICIAL AUTHORIZED TO DECIDE [TITLE 38] GRIEVANCES.

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- b. **Formal Grievance Procedure.** Authority to make a decision on formal grievances will be as follows:
 - (1) [Authority to make a decision on formal grievances will be the first-level SES or, when applicable, a Facility Director, who for the purposes of this part includes but is not limited to Veteran Integrated Service Network (VISN) Directors, within the employee's supervisory chain.
 - (2) The authority in paragraph 7.b.(1) can be redelegated via a general delegation of authority and/or on a case-by-case basis to GS-15 supervisors or to a supervisor no less than one level of supervision below the first-level SES or Facility Director. (See exceptions in subparagraph c.)
 - (3) Additionally, the Secretary, Under Secretary, or Deputy Under Secretary, as appropriate, may designate an appropriate official on a case-by-case basis who may decide the formal grievance of an employee.
 - (4) Change in Deciding Official:

- (a) A change in deciding official for cases involving the discharge of the grievant will occur prior to taking action on the formal grievance as outlined in paragraph 12(c) or, if occurring later, will restart the formal grievance process.
- (b) A change in deciding official for all other cases will generally occur prior to taking action on the formal grievance as outlined in paragraph 12(c). However, a change may occur later when warranted by the circumstances, and such a change will not impact full and fair consideration of the grievance.]

c. **Exceptions**